

M2.2 Rules of Evidence – Identification RASE

Learner Instructions

The accused, Aaron ROGERS (aged 19) is charged with theft of cigarettes. The charges relate to a shoplifting incident that occurred at a suburban milkbar.

It is alleged that ROGERS entered the milkbar while the owner was out the back. The owner, Mark OWEN, aged 34, will give evidence that he heard the bell go off to indicate that someone had entered the store, however he was in the middle of sending an email and did not walk out onto the shop floor immediately. When he entered the store a few minutes later, he says he saw ROGERS walking to the door with a number of cartons of cigarettes. He says that the door to the locked cabinet where he stores cigarettes for sale was wide open with the key in the door. He started to yell out to ROGERS, "Hey you, put that down!", when ROGERS started running out of the store and down the street. OWEN did not chase ROGERS as he did not want to leave the store unattended. He thereafter called police. He has checked his inventory and estimates 4 cartons of cigarettes are missing.

Evidence will also be given by Elise SOMERS, also aged 19. SOMERS will say that she was walking along the street where the milkbar was located at around the time of the theft on her way to the tram stop. She will say that she saw a man running out of the milkbar carrying 3 or 4 cartons of cigarettes. She recognised the man as the accused, Aaron ROGERS, because she went to high school with ROGERS for 6 years.

As a result of the information provided by SOMERS, police compiled a photo board including a photo of the accused. This photo board was produced using the iFace Application and did not include images of persons who appeared to be in custody. ROGERS was not offered the option of participating in an identification parade. OWEN identified ROGERS as the man he saw holding the cigarette cartons in his store.

Three weeks after OWEN identified ROGERS in the photo board, ROGERS was arrested and charged.

You intend to call SOMERS as a witness to give evidence that the person she saw running out of the milk bar carrying cartons of cigarettes at the time of the offence was a person she recognised as ROGERS.

You also intend to call OWEN as a witness to give evidence that he viewed a photo board and the person he identified in the photo board was ROGERS.

You also intend to call the police officer who showed the photo board to OWEN and tender the photo board through this witness. (You are not required to address the admissibility of this evidence in this tutorial)

Prepare a submission in relation to admissibility of the identification evidence of witnesses OWEN and SOMERS (separately). IRAC format preferred.